

UNITED STATES INTERNATIONAL TRADE COMMISSION

Washington, D.C.

In the Matter of

**CERTAIN SEMICONDUCTOR DEVICES,
PRODUCTS CONTAINING SAME, AND
COMPONENTS THEREOF**

INV. NO. 337-TA-1500

**ORDER NO. 8: INITIAL DETERMINATION GRANTING COMPLAINANT'S
MOTION TO AMEND THE COMPLAINT AND NOTICE OF
INVESTIGATION**

(September 14, 2026)

On August 31, 2026, complainant GlobalFoundries U.S. Inc. ("GlobalFoundries") filed a motion "to amend its Complaint ('Complaint') and the Notice of Investigation ('NOI') to add allegations that Respondent Tower Semiconductor Ltd. and its related entities (collectively, 'Tower') infringe dependent claims 8-12 and 19 of U. S. Patent No. 8,507,983 (the 'Additional '983 Claims')." Motion No. 1500-003 at 1.

The parties met, conferred, and subsequent to the filing of the motion, agreed to allow: (1) GlobalFoundries "to supplement its responses to Tower's contention interrogatories relating to the technical prong of the domestic industry requirement and infringement for the '983 Patent by September 23, 2026;" and (2) Tower "to serve its invalidity contentions as to those new claims within a reasonable time thereafter." Joint Supp. to Mot. at 1 (EDIS Doc. ID 894454). Coincident with this agreement, Tower indicated that it does not oppose GlobalFoundries' motion. *Id.*

Commission Rule 210.14(b) governs amending the complaint and notice of investigation after an investigation has been instituted. It states, *inter alia*:

After an investigation has been instituted, the complaint or notice of investigation may be amended only by leave of the Commission for good cause shown and upon such conditions as are necessary to avoid prejudicing the public interest and the rights of the parties to the investigation. A motion for amendment must be made to the presiding administrative law judge. Complainant shall serve one (1) copy of any motion to amend the complaint and notice of investigation to name an additional respondent after institution on the proposed respondent and on all other respondents. If the proposed amendment of the complaint would introduce an additional unfair act or an additional respondent, the motion shall be accompanied by a proposed amended complaint that complies with the requirements of § 210.12(a). If the proposed amendment of the complaint would require amending the notice of investigation, the presiding administrative law judge may grant the motion only by filing with the Commission an initial determination.

19 C.F.R. § 210.14(b).

GlobalFoundries argues that good cause exists to grant its motion because “information supporting infringement”—evidence of certain features recited in the Additional ’983 Claims—“w[as] not visible from the teardown imaging of the Accused Products” and was recognized only by “reviewing Tower’s confidential process documentation . . . and . . . design manuals” that were produced months after GlobalFoundries filed its complaint. Mot. at 6. According to GlobalFoundries, good cause also exists because it acted diligently from August 11, 2026, the date on Tower produced the documentation and manuals, until August 26, 2026, when GlobalFoundries notified Tower of its intent to amend the complaint. *Id.* at 7. GlobalFoundries also argues that granting its motion would “promote efficiency by enabling all relevant claims to be adjudicated in a single investigation” because “[p]rocesses that that fall within the scope of [the Additional ’983 Claims] necessarily relate closely to claims 1, 7, 13, and 18,” from which the Additional ’983 Claims depend and which already fall within the scope of the investigation. *Id.*

GlobalFoundries next contends that permitting the proposed amendment to the complaint and notice of investigation will not result in prejudice to Tower given the stage and circumstances of the investigation. Mot. at 8. GlobalFoundries also indicates that granting leave to amend the

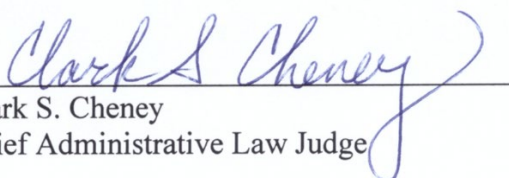
complaint will impact neither the claim construction process nor any other deadlines in the procedural schedule. *Id.* at 10.

In view of the circumstances of this investigation, I find that there is good cause to amend the complaint and notice of investigation to add claims 8-12 and 19 of the '983 Patent to this investigation. I do not find that the amendment will prejudice the public interest or the rights of any parties to the investigation.

It is my initial determination that Mot. No. 1500-003 is granted. GlobalFoundries shall file an amended complaint consistent with this determination on EDIS no later than September 17, 2026, and serve its initial contentions for the Additional '983 Claims no later than September 21, 2026. GlobalFoundries shall also supplement its responses to Tower's contention interrogatories relating to the technical prong of the domestic industry requirement and infringement for the '983 Patent by September 23, 2026. Tower will serve its invalidity contentions for the Additional '983 Claims no later than September 28, 2026.

This initial determination, along with supporting documentation, is hereby certified to the Commission. Pursuant to 19 C.F.R. § 210.42(h), this Initial Determination shall become the determination of the Commission unless a party files a petition for review of the Initial Determination pursuant to 19 C.F.R. § 210.43(a), or the Commission, pursuant to 19 C.F.R. § 210.44, orders, on its own motion, a review of the Initial Determination or certain issues herein. 19 C.F.R. § 210.42(d).

SO ORDERED.


Clark S. Cheney
Chief Administrative Law Judge